

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN IRELAND

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Ireland, grounded in the Planning and Development Acts, An Bord Pleanála, the courts, and documented community campaigns

This guide uses the Irish legal terms you will actually encounter (planning permission, submissions/observations, An Bord Pleanála, EIA and Appropriate Assessment, judicial review, section 50B cost protection, and so on), each explained in plain language where it first comes up. Note that a major reform (the Planning and Development Act 2024) is being phased in and will rename and adjust some of these — the core mechanics below still apply, but always check the current position.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up.

A note on money. Budgets in this guide are in euros (EUR). Every figure is indicative — Irish community campaigns range from near-zero (volunteer-run, pro-bono lawyers, free public data) to funded efforts that commission independent studies. Treat the ranges as a menu, not a bill.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Ireland — and the system gives communities an unusually clear set of entry points, if they know how to use them. Ireland's planning system is built on **participation and appeal**: for most projects anyone can make a **submission or observation** to the local council for a small fee, and — distinctively — a third party can then **appeal the council's decision to An Bord Pleanála (ABP)**, the national planning board, which re-decides the case afresh. Beyond that sits **judicial review** in the High Court, where a planning permission can be quashed for legal error, backed by two things that make Ireland stand out: strong **EU-law grounds** (the EIA and Habitats Directives, and the Appropriate Assessment rules that protect Natura 2000 sites), and a **cost-protection regime** — section 50B of the Planning Acts and the Aarhus "not prohibitively expensive" rule — that can shield an environmental challenger from crippling legal bills.

That is a strong toolkit. The honest counterweight is that the system is designed to deliver development — there is a national housing and infrastructure imperative, some project types (large-scale residential, and the new urban development zones) have **curtailed appeal rights**, judicial review is legally technical and time-limited, and a major

reform (the Planning and Development Act 2024) is tightening the rules on challenges. Communities across Ireland — fighting incinerators and waste facilities, quarries, data centres, wind and infrastructure projects, large housing schemes, and developments threatening rivers, bogs, and coasts — have organised anyway, and while outright refusals are the hardest outcome, ABP refusals, judicial-review quashes, conditions, delay, and redesign are all realistic.

What "winning" realistically means. Rarely a single dramatic veto — though an **ABP refusal** or a **High Court quash** is exactly that when you get it. More often: a permission granted with conditions that blunt the harm; a decision **quashed on judicial review** (frequently on an EIA-screening or Appropriate-Assessment point) that sends the project back to the start; a project delayed for years until its economics or politics change; or a redesign forced by sustained opposition. Each has happened. The realistic goal is to make the project slow, expensive, and legally exposed — and to use the appeal right, the EU-law grounds, the cost protection, and civic pressure that Ireland actually responds to.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down what is proposed, which body decides, under which consent route, and the date the decision becomes final.
2. **Documentation** — build an evidence record strong enough for a submission, an ABP appeal, and, if needed, judicial review.
3. **Local opposition** — organise a durable civic movement, because sustained pressure and a formally-constituted group strengthen every later step.
4. **Legal challenges** — use the submission, then the ABP appeal, then judicial review, with the EU-law grounds and cost protection.
5. **Media strategy** — generate coverage that raises the political cost of approval.

No single step wins alone. The combination — local pressure plus the appeal, the EU-law grounds, and cost protection — is what works.

A realistic picture of the odds. Be honest with your community from the start about what is likely. Most projects that reach a full planning decision are granted, often with conditions — an outright refusal is the exception, not the rule, though An Bord Pleanála refuses more than the councils and refusals do happen. The more common wins are incremental and cumulative: a permission loaded with conditions that raise the project's cost or blunt its harm; a delay of months or years that changes the economics or lets an election or a plan review intervene; a screening or Appropriate-Assessment defect that forces the whole consent to be redone; or a councillor bloc that defends the Development Plan. None of these is a dramatic courtroom veto, but each is a real outcome that has stopped or shrunk real Irish projects. A campaign that measures itself only against total victory will feel like it is losing even as it wins; one that banks each delay, each condition, and each concession keeps morale and momentum. Plan for a marathon, not a sprint, and use the strong Irish levers — the appeal, EU-law grounds, and cost protection — patiently and in combination.

Access to justice is a right here, not a favour. Ireland is bound by the Aarhus Convention and by EU law, which guarantee the public the right to environmental information, to participate in decisions, and to access the courts on terms that are "not prohibitively expensive." That framing matters practically: when a body stonewalls an information request, runs a token consultation, or resists your standing, it is not merely being unhelpful — it is potentially breaching binding obligations you can enforce through the Commissioner for Environmental Information, the courts, and the European Commission. The section 50B cost-protection rule exists precisely so that ordinary people can hold the system to these standards. Approach the process as a rights-holder, not a supplicant.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Ireland's system is built to deliver development, some appeal rights are curtailed, and judicial review is technical and time-limited. Assessing that honestly helps you choose the right tools: the strongest routes are usually a rigorous submission, a well-argued ABP appeal, and — if a permission issues — a judicial review built on **EIA/Appropriate-Assessment grounds** that carries **section 50B cost protection**, combined with sustained civic and political pressure. A tilt changes which lever works; it does not remove them all. Section 10 deals honestly with tilted situations, including the fast-track routes and the 2024 reform, and how to plan around them.

How to use this guide

Read Sections 1–3 once. Then work Section 4 (Target Identification) immediately — it produces the facts every other step needs, above all your deadlines and which consent route applies. Sections 5–8 run in parallel. Sections 9–11 are reference

material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, whether and when to keep going.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Ireland is a unitary state, and planning power is shared between the **local authorities** (the city and county councils), the national appeals board **An Bord Pleanála (ABP)**, and central government and its agencies — all within a framework set by **EU law**. Most fights turn on the council and ABP.

The levels of government — and what each one controls

The local authority (city or county council). The council is the first-instance planning authority: it receives the planning application, runs the public-participation stage, and grants or refuses **planning permission**, usually with conditions. The council's **Development Plan** (and any Local Area Plan) sets the policy the decision must follow — a project that conflicts with the plan (its zoning, or a "material contravention") is exposed. The **elected councillors** set the Development Plan and are a political pressure point, though the day-to-day decision is made by the executive planners. The council is also where you make your first, essential move: the **submission/observation**.

An Bord Pleanála (ABP). ABP is the independent national planning board that hears **appeals** from council decisions and decides certain large projects at first instance. Crucially for communities, a **third party who made a submission to the council can appeal** the council's decision to ABP, which then **re-decides the whole application afresh** — it can refuse a permission the council granted, or attach new conditions. (Under the Planning and Development Act 2024, ABP is being renamed *An Coimisiún Pleanála* and some procedures are changing; the appeal function remains central.)

Central government, agencies, and the EU layer. The relevant Minister and Department set planning policy and the National Planning Framework; the **Office of the Planning Regulator (OPR)** oversees the system; the **Environmental Protection Agency (EPA)** licenses industrial, waste, and larger emissions activities (a separate consent from planning); and bodies like the **National Parks and Wildlife Service** and Inland Fisheries protect nature and water. Above all sits **EU law**: the planning system must comply with the **EIA Directive**, the **Habitats and Birds Directives** (Appropriate Assessment), and the SEA Directive — and breaches are the sharpest judicial-review grounds.

Which one is "yours"? Ask: which consent does this project actually need, and by which route? Most projects go **council → possible ABP appeal**; some large housing, infrastructure, or strategic projects go **direct to ABP** (with reduced or no third-party appeal); an industrial or waste facility also needs an **EPA licence**; a project near a European (Natura 2000) site triggers **Appropriate Assessment**. Pinning this down is Step 1, and it decides the deadlines, the decision-maker, and which grounds and court apply.

How a decision is actually made — the journey of a project

For a standard project through the council, the path is roughly:

1. **Application lodged.** The developer lodges the planning application with the council; it is placed on the **public planning register** and site notices go up.
2. **Public participation.** Anyone can make a **submission/observation** within a set period (commonly five weeks from lodgement) for a small fee (currently €20). **This is your essential first move** — and, in most cases, you must have made a submission to have any right to appeal or to seek judicial review later.
3. **Council decision.** The council grants (usually with conditions) or refuses permission, and may seek **further information** first.
4. **Appeal to ABP.** A third party who made a submission can **appeal to An Bord Pleanála** within the appeal window (commonly four weeks from the decision) for a fee. ABP re-decides the application, often after an inspector's report and sometimes an oral hearing.
5. **Judicial review.** ABP's decision (or the council's, where no appeal lies) can be challenged in the **High Court by judicial review** — but only for legal error, only with the court's **leave**, and within a strict **eight-week** time limit.

Separately, an industrial or waste project needs its **EPA licence**, and a project affecting a European site cannot lawfully proceed unless the **Appropriate Assessment** rules are satisfied. Those are frequently the sharpest points of challenge.

The rulebook — the policies that decide the outcome

- **The Planning and Development Acts and the Development Plan.** Does the project comply with the plan's zoning

and objectives? A material contravention, or a decision that ignored the plan, is exposed.

- **The EIA Directive (and screening).** Was an Environmental Impact Assessment required, and properly done? **EIA screening** — the decision that a project does *not* need full assessment — is a very common and winnable challenge point.
- **The Habitats Directive / Appropriate Assessment (AA).** Where a European (Natura 2000) site could be affected, a lawful **Appropriate Assessment** (or a lawful screening-out) is required; a defective AA is one of the most successful judicial-review grounds in Ireland.
- **EPA and sector law.** Licensing, water, waste, and air rules add separate consents and grounds.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Ireland has a pressing housing and infrastructure need, which government policy pushes hard; data centres and energy projects carry economic and strategic weight; land is valuable and development-led; and councils gain from development. Fast-track routes have been created precisely to speed consent and limit objections. None of this is illegal, but it explains the default lean toward approval — and why the community's best levers are the appeal to an independent board, the EU-law grounds, the cost protection that makes litigation survivable, and organised local and political pressure, rather than trust in the process leaning your way.

The overseers — who watches the decision-makers

- **An Bord Pleanála** itself — an independent check on council decisions (and, on appeal, often stricter than the council).
- **The High Court** (and its dedicated **Planning and Environment List**) — quashes unlawful permissions on judicial review; appeals run to the Court of Appeal and Supreme Court.
- **The Office of the Planning Regulator (OPR)** — reviews planning authorities and the system.
- **The Office of the Ombudsman** — for maladministration by public bodies.
- **The Standards in Public Office Commission (SIPO)** and the Comptroller and Auditor General — for officials' conduct and public money; **An Garda Síochána** for corruption.
- **The European Commission** — where EU environmental law is breached, a free complaint can trigger infringement pressure on the State.

Naming the right body signals you understand the system, and involving ABP, the OPR, or — where EU law is engaged — the Commission at the right moment can change a project's whole trajectory.

A quick map of the words you will actually hear

The vocabulary is half the barrier, so here is the shorthand in plain terms. **Planning permission** is the consent a project needs; you apply to the **council** (the local authority), and the **planning register** is the public record where every application, drawing, and decision sits. A **submission** (or objection) is your written objection to the council — €20, and usually the ticket you need to do anything later. The **Development Plan** is the council's rulebook for what can be built where; a **material contravention** is a project that breaks it. **An Bord Pleanála (ABP)** — being renamed *An Coimisiún Pleanála* — is the independent national board that hears **appeals** and re-decides the whole case. **EIA** is Environmental Impact Assessment and the **EIAR** is the report the developer submits; **EIA screening** is the decision about whether full assessment is even needed — and a wrong screening-out is a classic winning ground. **Appropriate Assessment (AA)** is the extra, stricter test required when a **European site** — a **Special Area of Conservation (SAC)** or **Special Protection Area (SPA)** under the Habitats and Birds Directives — could be affected; remember that phrase, because a weak AA is often your strongest card. **Judicial review (JR)** is the High Court challenge to a decision's *legality* (not its merits), with a strict **eight-week** clock. **Section 50B** and the Aarhus "not prohibitively expensive" rule are the **cost protection** that can stop you having to pay the other side if you lose. The **EPA** licenses industrial and waste facilities separately from planning; the **AIE Regulations** are how you force out environmental documents; **An Taisce** and **FIE** are NGOs that participate and litigate. Keep this list to hand — using the right term in a submission or a letter signals that you understand the system and cannot be brushed off.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Irish and comparable EU campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Ireland sits inside the table: the country's **third-party appeal to ABP**, its strong **EU-law judicial-review grounds**, and its **cost protection** make the participation-and-legal route unusually productive — but the fast-track routes and strict time limits mean you must move precisely and on time.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (EUR)	What "Success" Means
Documentation only	5-10%	3-4 months	€300-6,000	Project slowed; public better informed
Local opposition only	20-25%	6-18 months	€1,000-12,000	Local pressure; councillors take notice
Council submission only	15-25%	1-3 months	€20-2,000	On record; can shape/refuse or enable appeal
ABP appeal only	25-35%	4-12 months	€220-8,000	Independent re-decision; can refuse or condition
Judicial review only	20-30%	12-36 months	€0-50,000 (cost-protected)	Quash on legal/EU grounds; technical
Media only	10-15%	3-6 months	€300-4,000	Public knows; no action by itself
Submission + ABP appeal	35-45%	6-15 months	€1,000-12,000	Best-value core: independent refusal/conditions
Local opposition + political	35-45%	12-24 months	€2,000-15,000	Councillors/plan pressure; material contravention
Appeal + JR + EU grounds	40-50%	18-42 months	€3,000-50,000 (protected)	Refusal or quash on EIA/AA grounds
All steps combined	50-65%	18-42 months	€10,000-70,000	ABP refusal, JR quash, conditions, delay/redesign, or withdrawal

Key insight: all steps together are several times more effective than any single one — and in Ireland the mix that works leans on **a rigorous submission + the ABP appeal + EU-law-grounded judicial review (cost-protected) + local and political pressure**. The core, best-value move most communities should always make is **submission → ABP appeal**, because it puts the decision before an independent board that re-decides afresh.

A note on legal cost: the council submission (€20) and the ABP appeal (a modest fee) are cheap; judicial review is where costs could be large — but section 50B and the Aarhus "not prohibitively expensive" rule can protect an environmental challenger from paying the other side's costs if at least one ground invokes the EIA/Habitats/SEA directives. This cost protection is one of the most important facts in this guide. The main unavoidable cost is good expert evidence.

Effectiveness Visualization

SUCCESS PROBABILITY (ABP refusal, JR quash, conditions, project delayed/redesigned, or withdrawn)

FAVOURABLE SCENARIO (standard route, plan on your side):

All steps combined: 50-65%
 Appeal + JR + EU: 40-50%
 Submission + ABP appeal: 35-45%
 Single step: 5-35%

TILTED SCENARIO (fast-track/strategic project, curtailed appeal):

All steps combined: 35-45%
 JR on EIA/AA grounds: 25-35% (cost-protected)
 Local + political: 20-30%
 Single step: 3-15%

How to read this honestly. In Ireland the appeal to ABP is your strongest routine lever, and EU-law judicial review is your strongest legal one — and the cost protection is what makes the latter survivable for ordinary people. The catch is timing and access: the JR clock is a strict **eight weeks**, you generally must have participated to have standing, and the fast-track routes strip the appeal. So the discipline is to participate early, appeal on time, and build EU-law grounds into any challenge. Even a "loss" that delays a project for years, wins conditions, or triggers EU scrutiny is a real outcome.

Step Importance Ranking (When All Combined)

1. **The submission and the ABP appeal** — the core, cheap, high-value move that puts the decision before an independent board and preserves every later right.
2. **Local opposition** — a durable, organised movement is the engine and the fundraiser for any legal stage.
3. **EU-law-grounded judicial review** — EIA/AA grounds, cost-protected, are Ireland's sharpest legal tool.
4. **Documentation** — the raw material for the submission, the appeal, the JR, and the media.

5. **Media and political pressure** — the amplifiers that move councillors and the government.

Winning Irish campaigns combined a durable civic group, a rigorous evidence file, a strong submission and ABP appeal, an EU-law-grounded and cost-protected judicial review, sustained media, and political pressure on councillors and the plan — no single track alone.

What Irish Campaigns Actually Show

A few patterns recur across documented Irish fights. The **ABP appeal genuinely matters** — the independent board refuses permissions councils granted, so the appeal is not a formality but a real second decision worth fighting. **EIA screening and Appropriate Assessment are the most fertile judicial-review grounds** — Irish courts (and the CJEU) have repeatedly quashed permissions where a project was wrongly screened out of full assessment or where the AA of a European site was inadequate, so those technical points are where cases are won. The **section 50B / Heather Hill cost protection** is decisive in practice — because one EU-environmental ground can protect an entire challenge from adverse costs, ordinary communities have been able to litigate projects they otherwise could never have risked. And the recurring hard lesson is **procedure and timing**: cases are lost for want of a prior submission, or by missing the eight-week window, far more often than on the merits. The through-line is that Ireland rewards communities that participate early, appeal to ABP, and build EU-law grounds into a timely, cost-protected challenge.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, farmland, river or stream, bog, woodland, coast, habitat, a European site), and what the project would do to it. Obtain the **planning application** and any **Environmental Impact Assessment Report (EIAR)** from the council's public planning register — they are public, and the EIAR is where the developer, on the record, describes the impacts and admits the residual ones. List every admitted impact with its page reference — that list is the skeleton of your submission and any later case.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the **consent route** — council with a possible ABP appeal, or a fast-track direct-to-ABP route with reduced appeal; (b) whether an **EPA licence** is also needed (industrial/waste); and (c) whether a **European (Natura 2000) site** is engaged, triggering Appropriate Assessment. Name the officials and the politics: the council's planners, the elected councillors (who control the Development Plan), and ABP. Because Ireland's live levers are the appeal and the courts, know both the decision-makers and the appeal/JR routes open to you.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: a **council refusal**; an **ABP refusal on appeal** (or new conditions); a **judicial-review quash** (often on EIA-screening or AA grounds); a **material contravention** of the Development Plan; a refused or challengeable **EPA licence**; or political defeat via the plan. Map the points and aim at the ones Ireland actually responds to — usually the appeal and an EU-law-grounded JR.

Question 4: When Is the Decision Final?

Diarise the strict deadlines — Ireland's are unforgiving: the **submission window** (commonly five weeks from lodgement — and making a submission is usually a precondition for appealing or seeking JR); the **ABP appeal window** (commonly four weeks from the council decision); and the **judicial-review window** — **eight weeks** from the decision, requiring leave from the High Court. Confirm the exact dates from the planning register and with a solicitor the moment a decision issues. Missing any of these forfeits the route — this is the single most common way Irish objectors lose.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which companies are behind the developer, whether land changed hands before the application, whether the project carries a "strategic" or fast-track designation, and whether any decision-maker has a tie to the developer. Use public sources — the **Companies Registration Office (CRO)**, the **Property Registration Authority / Tailte Éireann** land records, councillors' **register of interests** and SIPO records, and public-procurement records (eTenders). Build a dated, sourced timeline. Keep it rigorous; Section 11 covers doing it safely.

Output of Step 1: a one-page fact sheet with the project's exact description, the consent route and decision-makers, whether an EPA licence or Appropriate Assessment applies, the specific act or lever to pursue, every deadline, and the money map.

Worked example: which lever is actually open

Suppose a large quarry extension is proposed beside a river that feeds a European (Natura 2000) site. Working the questions: **Q1** — the EIAR admits dust, blasting noise, heavy traffic, and a risk to river water quality. **Q2** — it needs **planning permission** (council, with a possible ABP appeal), and because a European site is downstream, a lawful **Appropriate Assessment** is required; an EPA licence may also apply. **Q3** — the live levers are: a rigorous submission; an **ABP appeal** that re-opens the whole decision; and, if permission issues, a **judicial review** aimed at the **AA and EIA-screening** — often the strongest grounds — carrying **section 50B cost protection**. **Q4** — you diarise the five-week submission window, the four-week appeal window, and the eight-week JR clock. **Q5** — the CRO and land records show the operator's ownership and when the land was acquired. In an afternoon you know which levers are open — and that the ABP appeal and an EU-law-grounded, cost-protected JR, not a single dramatic move, are your strongest cards.

STEP 2: DOCUMENTATION

Documentation separates a campaign councils, the board, and the courts take seriously from one dismissed as complaint. It is also what your submission, your ABP appeal, and any judicial review all live or die on — and in Ireland, because JR turns on legal grounds, documenting the *procedural and EU-law* flaws matters as much as the physical harm. Build three layers.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — you cannot show harm without a baseline, and once ground is broken the "before" is gone. Start the day you learn of the project.

Water, air, and noise. Obtain existing data from the EPA (water and air quality) and record the current condition of rivers, streams, and groundwater, air, and the ambient noise environment. Water is often decisive in Irish cases, because so many disputes touch rivers and European sites downstream.

Nature and European sites. Document habitats, protected species, bog, woodland, and coast using National Parks and Wildlife Service records and, crucially, the **Natura 2000 / European site data** for any **Special Area of Conservation (SAC)** or **Special Protection Area (SPA)** that could be affected. A European-site connection is directly, powerfully legally relevant, because it triggers Appropriate Assessment.

Health and community. Document the human baseline — nearby homes, schools, health facilities, water sources, the age profile of residents, and existing conditions — because health and living-environment impacts strengthen both the planning case and the human story.

How to hold it. Keep everything dated, sourced, geo-referenced where possible, and backed up in a shared folder. Dated photographs of a river, a bog, or a hedgerow *before* the project are evidence a developer's snapshot cannot match. A well-organised baseline is more useful than a merely large one.

A note on doing your own measurements. You do not always need an expensive lab. Dated, geolocated photographs of a river, a bog, a hedgerow, or a stretch of coast *before* the project are evidence, and simple, consistent records — a monthly photo from the same spot, a note of the flow or clarity in a stream, a log of existing traffic and noise at set times — build a baseline no developer's snapshot can match. Where a specific number will matter (water quality upstream and downstream, bat or bird activity near a European site, blasting noise near homes), that is where to spend on a professional or ask a university department or a local ecology group to help. The principle is to capture the ordinary, unremarkable "before" now, cheaply and often, because once the machines arrive it is gone forever and its absence is the single most

common reason harm cannot later be proved.

LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the developer's **EIAR** (or the screening documents where no EIAR was done) — read it critically and catalogue four things:

1. **Admitted impacts** — every harm the EIAR itself concedes, with page references. Unarguable.
2. **The screening decisions** — scrutinise any **EIA screening** or **AA screening** that concluded full assessment was *not* needed. A flawed screening-out is one of the most successful judicial-review grounds in Ireland — this is where cases are won.
3. **Underestimated or omitted impacts** — downplayed water, traffic, or noise effects, and **cumulative impacts** with existing or other planned projects (a recurring, powerful gap).
4. **Appropriate Assessment adequacy** — where a European site is engaged, whether the AA genuinely ruled out effects "beyond reasonable scientific doubt"; anything less is vulnerable.

Get expert eyes on it. A critique carries far more weight when a qualified professional — an ecologist, hydrologist, or physician — has reviewed and signed it, even pro bono. Universities, environmental NGOs with technical staff, and retired professionals are sources of expertise. The goal is a written impact critique that reads as technical, that the council, the board, and a court can act on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because that is what moves neighbours, councillors, and reporters. Document:

- **Health** — the specific risks (dust, emissions, water contamination, noise) to nearby residents, drawing on recognised standards and, where possible, a physician's assessment.
- **Economy and livelihoods** — effects on farming, fisheries and angling, tourism and existing local businesses, and property values. Quantify it.
- **Community and place** — loss of a valued landscape, a river, a bog, or a rural community, and the strain on the area, plus any heritage or amenity value.

Package this layer twice: a rigorous version for the submission, the appeal, and any court, and a plain-language one-page version for neighbours and the press.

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — assemble the "before" record before ground is broken; request EPA and European-site data early (see the next section).
- **Phase 2: Impact (Months 2-3)** — dissect the EIAR and the screening decisions; line up expert review before the submission window so your critique is ready to file.
- **Phase 3: Health/Economic (Months 3-4)** — quantify the human and economic stakes and package them.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data** — file the submission on time with your best evidence; the window is short and it preserves your appeal and JR rights.
- **Only environmental data** — councillors and courts respond to health, economic, and heritage arguments too. Breadth wins.
- **Ignoring the screening decisions** — the EIA/AA screening-out is often the winnable legal ground; do not overlook it.
- **No expert review** — an impact critique no qualified person has signed is easy to wave away.
- **Ignoring the developer's own admissions** — the EIAR is a source of concessions. Quote it back, with page numbers.

Documentation Budget Breakdown (EUR)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Baseline data gathering	€0-300	€1,000-6,000
Expert technical report (ecology/hydrology/health/noise)	€0 (pro bono)	€2,000-15,000
Independent monitoring/measurement	€0-500	€1,000-8,000

Legal/planning consultation on the file	€0 (clinic/NGO)	€300–4,000
Printing/outreach materials	€100–500	€500–2,000

Much can be done for near-zero with pro-bono experts and public data. Spend where a paid report materially strengthens the appeal or a judicial review — one solid report on the decisive issue (often ecology/AA, hydrology, or health) is worth more than five general ones.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

Start at the council's planning register and the council's own website. In Ireland the official documents for a project — the application, the EIAR, the drawings, the submissions, the planner's report, and the decision — are on the **council's public planning register** (searchable online), and the **Development Plan** and local notices are on the council's own website. ABP appeal files are on the **An Bord Pleanála** website. The official documents for most projects live in these registers, so check them regularly. The legal clock runs from the decision posted there.

The application and the EIAR. Get the developer's application and EIAR the moment it is on the register — they are public, and the EIAR is where the developer admits harm in its own words. The **screening determinations** (EIA and AA) are what you scrutinise for legal grounds.

Baseline environmental data. EPA for water and air; the National Parks and Wildlife Service and the **European-site (SAC/SPA) data** for protected sites and species; and the developer's own EIAR baseline.

Ownership and money. Company ownership and directors from the **Companies Registration Office (CRO)**; land ownership from **Tailte Éireann** (the land registry); councillors' **register of interests** and **SIPO** records; and public-procurement records at eTenders.

How to force a document open. A request under the **Access to Information on the Environment (AIE) Regulations** — Ireland's Aarhus-based environmental-information rules — compels a public body to release environmental information without proving a specific interest, with an appeal to the **Commissioner for Environmental Information** if refused. Use the wording in Section 8E. For other records, the Freedom of Information Act applies.

Free and low-cost help. Environmental and planning NGOs advise and litigate — for example **An Taisce** (the National Trust for Ireland, a statutory consultee that also takes cases), the **Environmental Justice Network Ireland / FIE (Friends of the Irish Environment)**, and university law clinics; the **Commissioner for Environmental Information** and the **Ombudsman** are free to approach. Where EU law is engaged, a complaint to the **European Commission** is free.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the deciding authority, and the local-ally entries point you to the residents' groups, NGOs, and watchdogs already working nearby. Pull that thread first, then follow it into the planning register, the registries, and the information requests above.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

Sustained, visible local pressure is the single biggest factor in whether an Irish project is stopped or reshaped — and, distinctively, an organised group does practical work the individual cannot: it can pool the money for expert reports and a judicial review, coordinate mass submissions, and (if constituted appropriately) carry an appeal or a case. Ireland has a strong tradition of community and environmental organising, from residents' associations and *concerned residents* groups to national bodies like An Taisce and FIE that partner with local campaigns. Build that kind of movement.

Two principles carry special weight here: **breadth and respectability** (a movement that includes residents' associations, farmers, anglers, tidy-towns and heritage groups, and professionals is far harder to dismiss than a small activist core), and **durability** (a campaign that sustains steady pressure through the submission, the appeal, and — if needed — the courts beats one that flares once and fades, because the Irish process rewards those who are still standing at the judicial-review stage).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: One-on-one conversations. Start with the people most directly affected — neighbours whose homes, health, water, or amenity is at stake; farmers; anglers; local businesses. Personal conversations, not mass messages, build a durable core. Listen first: concrete local concerns (a river, a bog, traffic on a school road, a valued view) motivate more than abstractions.

Step 1b: Affinity groups by concern. Let people plug in through what they care about — water and angling, ecology and European sites, traffic and safety, health, heritage and landscape. Different concerns reach different neighbours.

Step 1c: Form a residents'/community group. Create a **residents' association or campaign group** with a name, a committee, a simple treasury, and minuted meetings. This is the vehicle for coordinating submissions, running the ABP appeal, fundraising for experts and legal costs, and — with advice on structure — being a party to a judicial review. Keep transparent accounts; it protects credibility and helps with fundraising.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Step 2a: Community meeting. Hold a public meeting to inform, gather support, and recruit; bring the maps, the EIAR's own admissions, and the submission deadline. A visible, well-attended meeting also signals seriousness to councillors and the press.

Step 2b: Opposition materials. One-page, factual, sourced leaflets; lead with water, ecology, health, and amenity stakes and the deadline. Include a simple model submission (and the €20 fee tip) so filing is easy.

Step 2c: Petition and mass submissions. A signature drive, and above all **mass individual submissions to the council** before the deadline — many individual submissions carry more weight than one letter, and each submitter preserves their own right to appeal. Note the rule clearly: **make a submission, or you generally lose the right to appeal or seek JR later.**

Step 2d: Media at launch. Time it to the submission window so coverage and the deadline reinforce each other.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Organisation outreach. Bring in national environmental organisations (An Taisce, FIE and others that litigate), angling and farming bodies, heritage and amenity groups, and medical and academic experts. Each adds credibility, reach, and sometimes lawyers and standing.

Step 3b: Coalition agreements. Agree roles, spokespeople, and messaging clearly before disagreements arise. Who lodges the ABP appeal? Who instructs the solicitor for any JR? Who speaks to the press? Who holds the funds? Settling this early prevents the splits that sink movements.

Step 3c: Coordinated public work. Joint submissions and a coordinated appeal, shared experts and legal advice, shared costs, and a coordinated approach to councillors, the OPR, and — where EU law is engaged — the European Commission.

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Step 4a: Councillor and political pressure. Lobby the elected councillors, who control the **Development Plan** and can resist a material contravention; press for the plan to protect the site; raise the issue with TDs and, where relevant, national campaigns. In Ireland, the Development Plan is a genuine lever, and councillors are answerable to constituents.

Step 4b: Public actions and media (ongoing). Lawful, orderly public meetings, marches, petitions handed over publicly, and steady media keep the issue alive and signal durability. Feed the story new pegs — the EIAR, the council decision, the appeal, the JR, the EU complaint.

Step 4c: Prevent failure points. Movements fade when they miss the submission or appeal deadline, rely on sentiment over evidence, splinter, or peak too early. Diarise every deadline (Ireland's are strict and fatal if missed), build the file, agree roles, and pace to the decision.

Worked example: a coalition that unlocks the strong levers

A community learns a large waste-to-energy incinerator is proposed near a river that flows into a European site. A Facebook group of 2,000 forms overnight — loud, but without leverage. What converts it into force happens in the first

weeks and is deliberately unglamorous. First, the organisers form a **constituted campaign group** with a committee and a treasury, so they can fundraise and, on advice, be a party to a case. Second, they run a drive for **mass individual submissions** before the five-week deadline — which both builds the record and preserves everyone's right to appeal. Third, they bring in an **ecologist and a hydrologist** to scrutinise the **AA and EIA screening**, because a European site is downstream and a flawed screening-out is the strongest legal ground. Fourth, they partner with a **national environmental NGO** experienced in judicial review and cost protection. By the time the council decides, the community can lodge a well-argued **ABP appeal**, and — if permission issues — bring a **cost-protected judicial review** on EU-law grounds. None of that required winning a case yet, but it made every later lever real. The lesson generalises: **in Ireland, the group you constitute and the submissions and appeal you organise in the first weeks are what turn the ABP appeal and a cost-protected EU-law challenge into live threats months later.**

Opposition Building Budget: Year-Long Campaign (EUR)

Highly variable. A lean, mostly-volunteer movement runs on **a few hundred to a few thousand euros** (submissions, printing, meetings, the appeal fee). A campaign expecting judicial review should budget for **expert reports (€2,000–15,000)** and **legal costs** — but remember that **section 50B cost protection** can shield you from the other side's costs on EU-environmental grounds, and NGOs and solicitors sometimes act at reduced rates; even so, disbursements and expert fees add up. Irish campaigns typically fund the legal stage through **membership, donations and crowdfunding, and coalition cost-sharing**. Keep transparent accounts — it protects credibility and unlocks donations.

STEP 4: LEGAL CHALLENGES

Ireland gives communities strong, sequential legal tools — the submission, the appeal, and judicial review — plus EU-law grounds and cost protection. The discipline is to use each in the right order and, above all, on time. Three tracks — participation and appeal, judicial review, and the EU/oversight route.

TRACK 1: THE SUBMISSION AND THE ABP APPEAL (the core route)

- **The submission/observation.** File a written submission to the **council** within the window (commonly five weeks), for €20. It puts your objection on the record, it shapes the decision, and — critically — **it is usually a precondition for appealing or seeking judicial review**. Aim at both planning and environmental points: conflict with the Development Plan; inadequate EIA/AA; water, ecology, traffic, and health impacts.
- **The appeal to An Bord Pleanála.** If the council grants permission, a third party who made a submission can **appeal to ABP** within the window (commonly four weeks), for a fee. **ABP re-decides the whole application afresh** — it can refuse what the council granted or attach new conditions. This is the strongest routine lever a community has, because it moves the decision to an independent national board. Put your best evidence and grounds in the appeal.

TRACK 2: JUDICIAL REVIEW (the sharp legal tool — cost-protected)

If ABP (or the council, where no appeal lies) grants permission, you can challenge it by **judicial review** in the **High Court**:
- **Only for legal error.** JR is not a re-run on the merits; it quashes a decision that was unlawful — a breach of the EIA or Habitats Directive, a flawed **EIA/AA screening**, a failure to give reasons, a material contravention of the plan, or a breach of fair procedures. - **Leave, and a strict eight-week clock.** You must apply to the High Court for **leave** to bring the JR **within eight weeks** of the decision. This deadline is strict; missing it forfeits the route. A dedicated **Planning and Environment List** now handles these cases. - **Cost protection — the crucial point.** Under **section 50B** of the Planning Acts and the Aarhus "not prohibitively expensive" rule, an environmental JR is largely protected from adverse costs — and the Supreme Court in *Heather Hill* confirmed that **one ground invoking the EIA/Habitats/SEA directives protects the whole case**. This is what makes JR survivable for ordinary communities; build at least one solid EU-law ground into any challenge. - **EU-law grounds are the sharpest.** EIA-screening and Appropriate-Assessment failures are the most successful grounds, and a national court can (or must) refer questions to the **CJEU**.

TRACK 3: THE EU AND OVERSIGHT ROUTE (the backstop)

- **A complaint to the European Commission.** Where the State breaches EU environmental law, a free complaint can trigger infringement pressure. Slow and indirect, but real leverage a purely national system lacks.
- **The EPA licence.** For an industrial or waste facility, the separate EPA licensing process is another point of participation and challenge.
- **The OPR, the Ombudsman, and the Commissioner for Environmental Information** — for systemic failures,

maladministration, and refused information.

The three legal challenge types

TYPE 1: SUBMISSION + ABP APPEAL (the core, cheap, high-value route)

File the submission (preserving your rights) and appeal to the independent board, which re-decides afresh. Every community should do this.

TYPE 2: JUDICIAL REVIEW ON EU-LAW GROUNDS (the sharp, cost-protected tool)

Quash an unlawful permission in the High Court on EIA/AA grounds within eight weeks — protected from adverse costs by section 50B. Ireland's strongest legal lever.

TYPE 3: THE EU/OVERSIGHT ROUTE (the backstop)

A Commission complaint, the EPA process, and the oversight bodies — leverage beyond the national planning decision.

Legal Strategy Decision Tree

1. **Is the application on the register?** → File a **submission** now (preserve your appeal/JR rights) and press the plan/councillors.
2. **Did the council grant?** → **Appeal to ABP** within the window with your best grounds and evidence.
3. **Did ABP grant, or is there no appeal?** → Prepare a **judicial review within eight weeks**, built on EIA/AA and other legal grounds, with **section 50B cost protection**; seek a stay if works could start.
4. **Is EU law breached?** → Ensure at least one EU-law ground (for cost protection and strength), and file a **Commission complaint** in parallel.

Litigation Success Factors

Having made a submission (for standing); the right grounds (EIA/AA screening, fair procedures, plan contravention); at least one EU-law ground (for cost protection); a rigorous, expert-backed evidence file; strict adherence to the eight-week clock; and a solicitor experienced in planning judicial review. Missing any one weakens the case.

What to Avoid: Legal Failures

Failing to make a submission and losing standing; missing the eight-week JR window; bringing a JR as a merits re-run rather than on legal grounds; omitting an EU-law ground and losing cost protection; and litigating without experienced planning counsel.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often win in Ireland — so you file the right fact against the right rule.

A flawed EIA screening (screened out of full assessment) → judicial review. One of the most successful Irish grounds. Feed it with: the screening determination and your expert's evidence that significant effects were likely and full EIA was required.

An inadequate Appropriate Assessment → judicial review. Where a European site is affected, an AA that did not rule out effects beyond reasonable scientific doubt is highly vulnerable. Feed it with: the SAC/SPA data and your ecologist's critique of the AA.

A material contravention of the Development Plan → refusal or JR. Feed it with: the plan's zoning and objectives and the project's breach of them.

Ignored cumulative impacts → JR / appeal ground. Feed it with: a map and list of the other projects and the EIAR's silence on their combined effect.

A failure to give reasons or a breach of fair procedures → JR. Feed it with: the decision's inadequate reasoning or

the procedural step that was skipped.

Any solid EU-law ground → cost protection for the whole case. Because of *Heather Hill*, one good EIA/Habitats/SEA ground shields the entire challenge from adverse costs. Always plead at least one.

The pattern: match one clean, documented defect to one clear ground, lead with the **EIA-screening and Appropriate-Assessment** grounds (the most successful, and cost-protecting), and get them before ABP on appeal and, if needed, the High Court within eight weeks. An environmental NGO or a planning solicitor can tell you fast which ground is live.

STEP 5: MEDIA STRATEGY

Media rarely stops a project by itself, but it raises the political cost of approval, protects the movement, sustains momentum, and reaches experts and allies you would not otherwise find.

How Journalists Actually Work

Reporters need a story with a hook, a human face, a conflict, and a document. Hand them the EIAR's own damning admissions (quoted, with page numbers), a named family, farmer, or angler whose amenity or livelihood is at stake, a clear deadline, and a map or striking image (the threatened river, bog, or view). Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a deadline + a David-and-Goliath frame + a visual = coverage. Irish project fights — incinerators, quarries, data centres, large housing schemes, wind and infrastructure, and threats to rivers and bogs — draw local and national attention on exactly this formula, especially where water, a European site, or a valued landscape is at stake.

Know the Outlets That Cover This Beat

Map the national newspapers and their environment/planning desks, RTÉ and commercial radio and TV, strong local papers and radio (which reach communities directly), and specialist environmental media. Build a contact list with names and beats.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable local contact. One trusted relationship with a journalist beats a dozen press releases. Offer access — to the site, to affected residents, to your experts.

Why media matters even when it doesn't make the front page

Coverage does quieter work: it reaches an expert who reviews the EIAR for free, a solicitor or NGO that will bring a cost-protected JR, a councillor who did not grasp how many constituents object, and it creates a dated public record that protects the movement. Where EU law is engaged, national and European coverage raises the stakes for the government and the Commission. A steady drumbeat of accurate coverage moves councillors and the government more reliably than one national splash.

Sample Media Timeline

Launch with the submission window; refresh at each milestone — the mass submissions, the council decision, the ABP appeal, the JR filing, the EU complaint. Each is a fresh news peg.

Media Measurement

Track coverage, but measure what matters: whether councillors, ABP, and the government are responding, whether the movement is growing, whether experts and allies come forward, and whether the politics around the project is shifting.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. Submit important ones through the council's planning system or ABP, and keep dated proof of anything you file — Irish deadlines are strict and proof of timing matters.

8A. Email to a reporter (story pitch)

Subject: [County]: residents challenge [project] before [deadline] — documents attached

Dear [name],

A [project type] is proposed at [location, county] (planning ref. [number]). The developer's own environmental report concedes [specific admitted impact, quoted, with page number]. The window to make submissions to [council] closes on **[date]**.

A residents' group, **[name]**, representing [number] households and [any coalition partners, e.g. the local angling club], is filing submissions and preparing an appeal to An Bord Pleanála, and has [an expert report / a petition of X signatures]. The human stakes: [water/health/amenity point]. [If relevant: a European site is affected, raising Appropriate Assessment and EU-law issues.]

I can connect you with affected residents and our experts, and arrange a site visit. Could we talk this week?

[Name] · [Group] · [phone] · [email]

8B. Letter to a decision-maker (councillor / council / ABP)

Subject: [Project] — planning ref. [number]

To [Councillor / the Planning Authority / An Bord Pleanála]:

We write on behalf of [residents' group] regarding [project] at [location]. We respectfully ask you to **[refuse permission / uphold the appeal and refuse / defend the Development Plan / require a full EIA and Appropriate Assessment]** for the following reasons:

1. [Ground 1 — e.g. the project materially contravenes the Development Plan.]
2. [Ground 2 — e.g. the EIA/AA screening wrongly excluded full assessment.]
3. [Ground 3 — e.g. the impact on the river and the downstream European site is inadequately assessed.]

We request a written response. We are ready to provide the underlying evidence.

[Signatories, group, contact]

8C. Submission/observation to the council

Submission on planning application ref. [number], [project], [council]

[Name / residents' group] submits the following within the submission period (fee enclosed): 1. **Development Plan.** [The project materially contravenes the plan's zoning/objective for [X].] 2. **EIA/AA screening.** [Full EIA and Appropriate Assessment are required; the screening-out is inadequate because [reason].] 3. **Water and ecology.** [The impact on [river/European site] is underestimated; evidence attached.] 4. **Cumulative impact.** [This project, with [other developments], must be assessed together.]

We ask the authority to **refuse permission** or, at minimum, require full assessment and impose strict conditions.

[Date, name, contact; attach evidence]

8D. Coalition outreach letter (to an NGO or solicitor)

Subject: Please support our campaign on [project] — [area]

Dear [organisation / solicitor],

We are a residents' group opposing [project] at [location] (ref. [number]), which threatens [water, a European site, amenity, health]. We have made submissions and intend to appeal to An Bord Pleanála, and — if permission issues — to consider a judicial review on **EIA/Appropriate-Assessment grounds** (with section 50B cost protection).

Your [litigation experience / standing / expertise] would strengthen the effort greatly. Could we meet to agree how to

work together?
[Name, group, contact]

8E. Environmental-information request (AIE Regulations)

Subject: Request under the Access to Information on the Environment (AIE) Regulations

To [council / EPA / public body]:

Under the **AIE Regulations** and the Aarhus Convention, we request: 1. the full file and Environmental Impact Assessment Report for [project]; 2. the EIA and Appropriate Assessment screening determinations and any inspector's report; 3. [specific data — water/ecology records; the European-site assessment]; 4. all correspondence between your body and [developer] concerning [project].

Please provide these within the statutory period. If any part is refused, please state the specific legal basis; we reserve the right to appeal to the Commissioner for Environmental Information.

[Name/group, date, contact]

8F. Legal-action instruction to counsel (judicial review)

Subject: Proposed judicial review of [ABP/council] decision on [project]

To [solicitor]:

[Residents' group / named applicants] intend to seek judicial review of the [ABP/council] decision (ref. [number], dated [date]) granting permission for [project]. Proposed grounds: [flawed EIA screening / inadequate Appropriate Assessment / material contravention of the Development Plan / failure to give reasons]. We can provide: the decision, our submissions, and expert reports on [ecology/hydrology]. Please advise on **leave within the eight-week window, section 50B cost protection** (we can plead an EIA/Habitats ground), a stay if works could start, standing, and costs.

[Date, signature]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

[County] residents submit [number] objections to [project] before [deadline]

[Residents' group] today submitted [number] objections to [project] at [location] (ref. [number]), citing [top two grounds], and will appeal to An Bord Pleanála if permission is granted. "[Short, human quote from an affected resident]," said [name, role].

The developer's own report admits [quoted impact]. The decision rests with [council/ABP]; the submission window closes on [date]. [If relevant: the project affects a European site, raising EU-law concerns.]

Contact: [name, phone, email]. Photos, the full submission, and interviews available on request.

8H. Petition / demand for conditions (to councillors or the board)

Subject: [Project] — request to refuse or strictly condition

To [the elected members / An Bord Pleanála]:

We, the residents of [area], ask you to [refuse [project] / defend the Development Plan / impose strict conditions]. The project threatens [water, a European site, amenity, health], its environmental report is deficient in [X], and [a European site is affected, requiring a lawful Appropriate Assessment]. We ask you to [uphold the plan / refuse permission / require full assessment and binding conditions including monitoring and enforceable limits].

[Group, number of signatories, date, contact]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual planning reference and dates, and — for

anything heading to court — have a solicitor experienced in planning judicial review review it. Deadlines are strict and fatal if missed (the five-week submission window, the four-week appeal window, and the eight-week JR window); keep dated proof of everything you file, and make a submission to preserve your later rights.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can build a coalition or run a year-long campaign. If you have an afternoon a week, you can still do real damage to a bad project. In rough order of impact for the effort:

1. **Make a submission to the council before the deadline (€20).** One page, in your own words, citing one or two concrete problems (the Development Plan; a European site; water). It costs almost nothing, goes on the record, and — crucially — **preserves your right to appeal and to seek judicial review**. This is the highest-value single act; without it you lose your later options.
2. **Get the EIAR and quote its worst admission back to the council.** The developer's own words carry more weight than any outside claim.
3. **If the council grants, appeal to An Bord Pleanála in time.** The independent board re-decides the whole case — the strongest routine lever you have.
4. **Point one environmental NGO at the fight.** An Taisce, FIE, or another can advise or take a cost-protected case — you hand off, you don't have to lead.
5. **Send one accurate email to a local reporter** (Section 8A). A single story raises the political cost and can reach an expert or a solicitor.
6. **Request the file under the AIE Regulations** (Section 8E) — including the EIA/AA screening, which is often where the case is won.
7. **Tell your neighbours the deadline.** Ten individual submissions are worth more than your one — and each preserves that person's own appeal right.

If you do only the first three, you have preserved every legal right, put the decision before an independent board, and left a trail others can pick up. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Ireland's system is built to deliver development, some appeal rights are curtailed, and judicial review is technical and strictly time-limited. Being honest about this is how you pick the tools that actually work.

What This Tilt DOES (and DOESN'T DO)

The tilt speeds consent, strips the appeal on some fast-track routes, and makes JR a narrow, deadline-bound door. It does **not** close the doors: on the standard route the **ABP appeal** re-opens the whole decision; **EU-law grounds** (EIA/AA) are powerful and, via **section 50B, cost-protected**; the **Development Plan** and councillors are a real lever; and the **European Commission** is a backstop. The key is to participate early (to keep your rights), move on time, and build EU-law grounds into any challenge.

Reading Your Tilt: Standard, Fast-Track, Strategic

- **Standard route.** Council → ABP appeal → JR all available. Here the full toolkit works: submission, appeal, and a cost-protected JR.
- **Fast-track (large-scale residential, some strategic infrastructure, urban development zones).** Appeal rights may be **reduced or removed**, and the decision may go straight to ABP. Here **judicial review becomes your main legal route** — so build EIA/AA grounds and cost protection in from the start, and participate at whatever consultation exists to preserve standing.
- **Strategic / government-backed project.** Expect the whole chain to lean toward yes, and the 2024 reform to tighten challenges. Prepare a **cost-protected, EU-law-grounded JR**, a **Commission complaint**, and sustained political and media pressure. Even here, delay, conditions, and redesign are achievable, and EU-law exposure is a genuine deterrent.

Documented Irish Dynamics

The record shows both the tilt and the strong levers. Irish and CJEU case law has repeatedly quashed permissions on **EIA-screening and Appropriate-Assessment** grounds, so those technical points genuinely work. The Supreme Court's **Heather Hill** decision confirmed that one EU-environmental ground protects a whole challenge from adverse costs, which has made JR viable for ordinary communities. And the strategic-housing fast-track produced a wave of successful judicial reviews precisely because it curtailed appeals and pushed disputes into the courts. The recurring lesson is **procedure and timing**: participate to keep standing, and never miss the eight-week window.

Assessment Framework — Determine Your Situation

Ask: Is this a standard route (appeal available) or fast-track (JR is the main route)? Is a European site engaged (strong AA grounds)? Did you make a submission (needed for standing)? Can you plead an EU-law ground (for strength and cost protection)? The answers tell you whether to lead with the appeal, the JR, or political pressure on the plan — usually a combination.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Irish movements rely mainly on lawful tools — submissions, appeals, judicial review, petitions, public meetings, and peaceful demonstrations, which are constitutionally protected. Public assembly can require notification and has limits. Know the law, stay lawful and orderly, prioritise safety, and get legal advice before anything that could carry legal risk. This guide notes such tactics exist; it does not advise breaking the law, and the movement's credibility is an asset worth protecting.

Honest Assessment

Tilted fights are harder and some are lost, and the fast-track routes and 2024 reform are real constraints. But "harder" is not "hopeless" — the ABP appeal, EU-law-grounded and cost-protected judicial review, and durable political pressure have refused, quashed, delayed, and reshaped projects, and even an ultimate loss often buys years of delay, conditions, EU scrutiny, and an organised community. Concentrate force where the tilt is weakest — the independent appeal, the EU-law grounds, and the cost protection — and move early and on time.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it does not look the same in every institution. Read your specific situation actor by actor, because the type of capture changes which lever works — and, sometimes, tells you a lever is closed. Handle it carefully: the same facts that can sink a project can expose you to a defamation suit if you get them wrong.

Councillors and the Development Plan. The most common pressure point: rezoning and plan-making, historically the site of Ireland's biggest planning-corruption scandals (the tribunals of inquiry examined exactly this). Signs: a sudden rezoning, a material contravention pushed through, a councillor with a developer tie. Lever: the councillors' **register of interests** and the **ethics/SIPO** rules — an undisclosed interest or a breach can taint a decision and trigger accountability, a lower bar than proving a bribe.

Council planners and the executive. Capture here is usually softer — pressure to grant, or reliance on the developer's consultants. Signs: a planner's report that ignores its own evidence or the plan. Lever: the ABP appeal (an independent re-decision) and judicial review for a flawed process.

An Bord Pleanála. ABP is the independent check and generally robust — but it is not beyond scrutiny (recent controversies over board members' declarations and conflicts led to reform and resignations). Signs: an undeclared conflict on a specific case. Lever: the conflict-of-interest and transparency rules, the OPR, and judicial review.

The developers. Watch for land quietly optioned or rezoned before a project is public, shell companies, "strategic" designations sought to bypass appeals, and revolving-door hires. The CRO and land records surface the timeline a journalist or investigator needs.

The courts. Ireland's courts are independent, which is why judicial review is a genuine lever. The real constraints are **the**

eight-week clock, technicality, and (absent cost protection) cost — structural features to plan around, not misconduct. Build EU-law grounds for cost protection and move on time.

National politicians and "housing/strategic" priorities. Where a project serves a national housing or infrastructure imperative, expect the whole chain to lean toward yes, and the rules to be tightened against objectors. Not corruption, but capture of a kind; the honest path is EU-law rigour, cost-protected JR, and public pressure.

How to act on it, safely. Document from public sources before you say anything. Route serious allegations through solicitors and the proper bodies — **SIPO** and the ethics regime for officials, the **Standards** and planning-enforcement processes, An Garda Síochána for corruption, and the Comptroller and Auditor General for public money — not social media. A reckless public accusation can expose you to defamation liability (Irish defamation law is claimant-friendly) and hand the developer a way to change the subject. Name capture privately in your strategy; prove it publicly only when you can.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other over a campaign that typically spans a year or more (and judicial review, if it comes, longer). Here is how they fit onto one timeline — anchored to Ireland's strict, fatal-if-missed deadlines.

Realistic 12-Month Campaign Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the one-page fact sheet — project, consent route, decision-makers, whether an EPA licence or Appropriate Assessment applies, the lever to pursue, and — above all — **every deadline**. - Form the residents' group (and take advice on structure so it can be a party to a case). - Begin baseline documentation (Step 2, Layer 1) before ground is broken. - Request records via the AIE Regulations, including the EIA/AA screening. - Start one-on-one organising (Step 3, Phase 1).

Months 2-3 (Launch — the submission window). - **File submissions to the council before the deadline** — the essential move that preserves every later right — and run a mass-submission drive (Step 4, Track 1). - Press councillors on the Development Plan. - Hold the community meeting and launch media timed to the submission window (Steps 3 & 5). - Complete the EIAR/screening critique with expert help, focusing on ecology/AA, hydrology, and cumulative impact (Step 2, Layer 2).

Months 3-6 (Decision & appeal). - Build the coalition — bring in national NGOs (which can litigate), angling/farming bodies, and experts (Step 3, Phase 3). - Finish the health/economic analysis (Step 2, Layer 3). - When the **council decides**: if it refuses, defend the refusal on any developer appeal; if it grants, **appeal to An Bord Pleanála within the window** with your best grounds and evidence (Step 4, Track 1). - Sustain media and political pressure.

Months 6-12 (ABP decision & judicial review). - Await and engage the ABP process (inspector's report, possible oral hearing). - If ABP grants (or on a fast-track route with no appeal), **prepare a judicial review within the eight-week window**, built on EIA/AA and other legal grounds, with **section 50B cost protection**; seek a stay if works could start (Step 4, Track 2). - File a **Commission complaint** in parallel where EU law is breached.

Beyond 12 months. - Judicial review and any appeals can run one to three years; a stay protects you in the meantime. - If the project proceeds, monitor compliance with conditions and pursue enforcement. - Keep the group and the file alive; the movement and evidence are assets for the next fight.

Warning Signs — Act Early

An application appears on the planning register (the submission clock is running — act now); a **fast-track / strategic / large-scale-residential** designation is used (appeal may be stripped — JR is your route); a European site is nearby (strong AA grounds — confirm early); the council is about to decide. Early action beats late reaction — and making a submission and lining up legal advice early is far stronger than scrambling after a grant, when the eight-week clock is already running.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: make a submission to preserve their rights; appeal to ABP; document rigorously, especially on EIA/AA screening; build EU-law grounds for a cost-protected judicial review; hit every strict deadline; and sustain media and political pressure on councillors and the plan. Losing campaigns: fail to make a submission (losing standing); miss the

eight-week JR window; bring a JR as a merits re-run; omit the EU-law ground (losing cost protection); rely on sentiment; splinter; or peak early.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" takes several forms, and it is worth naming them so you recognise a win when you get one: - an **ABP refusal on appeal** — the independent board refusing what the council granted; - a **judicial-review quash** — often on an EIA-screening or Appropriate-Assessment point — that sends the project back to the start or kills it; - a **council refusal**, or a project blocked by the **Development Plan**; - a permission granted with **conditions** that blunt the harm; - a project **delayed for years** until its economics or politics collapse, or a **redesign** that removes the worst harm; - or **EU infringement pressure** that forces the State to change course.

Irish communities have achieved each — usually through a rigorous submission and ABP appeal plus a cost-protected, EU-law-grounded judicial review and sustained local and political pressure.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If you have strong grounds — a flawed EIA/AA screening, a plan contravention — made a submission, and can plead an EU-law ground for cost protection, a judicial review may be well worth it despite the technicality. If you missed the submission or the eight-week window, the legal route may be closed and effort shifts to conditions, enforcement, or the next plan and election. If every avenue is exhausted, redirect accordingly. Continuing is not always right; neither is quitting at the first setback.

The Bottom Line

Ireland's system is built to deliver development, curtails some appeal rights, and makes judicial review technical and strictly time-limited — but it hands communities an unusually clear and strong set of levers: a **submission** that preserves your rights for €20; a **third-party appeal to an independent national board** that re-decides the whole case; **judicial review** on powerful **EIA and Appropriate-Assessment** grounds; and — decisively — **section 50B cost protection** that makes that litigation survivable for ordinary people. Communities that participate early to keep their standing, appeal to An Bord Pleanála, document rigorously, build EU-law grounds into a cost-protected judicial review, hit every strict deadline, and keep steady political and media pressure on councillors and the plan have won ABP refusals, High Court quashes, conditions, delay, redesign, and EU scrutiny — and can again. No single step wins; the combination does. Start today by finding your deadlines, making your submission, and identifying which lever — the ABP appeal or an EU-law-grounded, cost-protected judicial review — is actually open.